

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: March 8, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

MEMORANDUM ORDER EXTENDING SCHEDULE

On February 23, 2024, in compliance with my instructions that they not file any further motions regarding discovery, the parties brought to my attention a dispute regarding the dates for exchange of expert reports and taking expert depositions. I convened a status conference to promptly resolve the dispute.

SM Line stated that its economic damages expert would not be available until March 14, 2024 because he was in trial. The parties had already exchanged expert reports on liability, and Complainant provided a damages report, but Respondent stated its damages expert was unable to provide a report prior to March 1, 2024 because of the trial schedule and because Complainant had produced additional documents related to damages as late as February 21, 2024. Respondents sought an extension to March 14, 2024 to complete expert discovery and Complainants opposed this request.

While concerned about Respondent's evident lack of planning, I found that the late-produced documents, the expert's trial schedule, and Complainant's need to depose the damages expert warranted an extension and ordered the parties to complete expert depositions by March 14, 2024, with Respondent's damages expert CV and list of publications turned over on February 26, 2024 and report due on March 1, 2024. I also informed the parties I would modify the briefing schedule to account for this extension. The parties are hereby **ORDERED** to comply with the following revised schedule:

March 14, 2024

Close of expert discovery

April 15, 2024

Complainant's brief, proposed findings of fact, and appendix

May 15, 2024

Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix

May 30, 2024

Complainant's reply brief and responses to proposed findings of fact

**ALEX
CHINTELLA**

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Alex M. Chintella
Administrative Law Judge